

Case 9 : Unfair Dismissal

1.Societal / Environmental Effects and Sustainability

This automated dismissal system mentioned in the Diallo case had a direct impact on the person in question as it deprived him of his workplace, cut off his salary, and humiliated him publicly when he was escorted out as a thief (Stahl, Schroeder, and Rodrigues, 2023). This demonstrates that these systems may cause great psychological and reputational effects on employees even when they have not committed any wrong. Diallo himself characterized messages that are generated by the system as soulless and unresponsive, without any human control and the Personal distress of the unclear automated decision-making (Diallo, 2018). Wakefield (2018) also highlighted that the case demonstrates that improperly developed automation in working processes can compromise the sense of security and dignity of the employees.

Such systems will threaten to sustain low levels of trust between employees and employers, dehumanise and impersonalise decision-making, and lead to the probability of psychological stress, low morale, and workplace dissatisfaction in the long run unless appropriate protection measures are put in place (Stahl et al., 2023). The implementation of the system is not socially sustainable, as failures/errors may occur repeatedly, and it may cause employees disengagement and incremental organizational expenses in the form of litigation, employee turnover, and negative reputation. To be deployed sustainably, AI-based HR systems should incorporate human supervision, openness, and appeal mechanisms, so that efficiency would not be achieved at the cost of fairness and dignity (Diallo, 2018; Wakefield, 2018).

2.Ethical Violations: Bias, Transparency, and Accountability

The automated removal system of the case Diallo has can be characterized by crucial ethical issues, especially with respect to transparency and accountability, even though no obvious bias against a particular category of individuals can be observed (Stahl, Schroeder, and Rodrigues, 2023). Both Diallo and his line manager were helpless in the system that made big employment decisions without reasons that had to be communicated to them. Diallo reported the dismissal messages created by the system as soulless and rigid, evidencing the impact of the absence of transparency on an individual level of distress and uncertainty (Diallo, 2018). Wakefield (2018) emphasized that the case shows the general dangers of assuming that AI is infallible, which further justifies the importance of human supervision of automated systems in the workplace.

Although the bias was not observed in this case scenario, the AI systems employed in the management of human resources may inadvertently recreate or enhance unfair treatment in case previous data or structural processes are biased in nature. That is why without close monitoring and testing of fairness, similar systems may discriminate against some groups (Stahl et al., 2023). Regarding responsibility, the system did not initially have a mechanism to review or correct and the obligation to reverse the error was ambiguous (Wakefield, 2018). Such systems must be ethically deployed thus with transparent evaluation criteria, clear documentation, human-in-the-loop supervision and mechanisms of appeal or correction, so that employees are not exposed to arbitrary decisions.

3.Legal Implications and Engineer Responsibilities

When a such kind of system as the one Diallo describes is implemented in the real world, the legal implications thereof are significant. Employment decisions made through automated methods that may lead to dismissals or limitations to access workplaces may be unlawful because they contravene the employment laws that

guard against unfair dismissal and wrongful termination (Stahl, Schroeder, and Rodrigues, 2023). In the case of Diallo, three weeks of unemployment occurred as the result of an automated error, which proves that such systems may violate the rights of laws inadvertently unless protective measures are taken (Diallo, 2018). According to Wakefield (2018), specialists also highlighted the importance of human control over AI since delegating essential choices to this technology may result in legal conflicts and crises in the image of the company.

The job of engineers who implement such systems is to make sure that they are safe, fair, and in accordance with the regulatory frameworks. It involves the development of human-in-the-loop mechanism, verification of possible bias, reporting of the processes of system functioning, and the development of the review and correction processes (Stahl et al., 2023). Another aspect that engineers must consider is the legal exposure of the system, such as unfair dismissal claims or breach of labor laws, and transparency to make sure that any affected staff is aware of the decision-making process (Diallo, 2018; Wakefield, 2018). The presence of such safeguards will allow engineers to minimize the likelihood of legal consequences, at the same time ensuring that automated HR systems remain ethical and legal.

References

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